CHAPTER 40 Municipalities

The term 'Urban Local Government' in India signifies the governance of an urban area by the people through their elected representatives. The jurisdiction of an urban local government is limited to a specific urban area which is demarcated for this purpose by the state government [1].

There are eight types of urban local governments in India—municipal corporation, municipality, notified area committee, town area committee, cantonment board, township, port trust and special purpose agency.

The system of urban government was constitutionalised through the 74th Constitutional Amendment Act of 1992. At the Central level, the subject of 'urban local government' is dealt with by the following three ministries:

(i) Ministry of Housing and Urban Affairs

(ii) Ministry of Defence in the case of cantonment boards

(iii) Ministry of Home Affairs in the case of Union Territories

Evolution of Urban Bodies

 **Historical Perspective**

The institutions of urban local government originated and developed in modern India during the period of British rule. The major events in this context are as follows:

(i) In 1688, the first municipal corporation in India was set up at Madras. It must be noted here that a Charter for the establishment of the Municipal Corporation of Madras was issued on 30th December 1687. However, the corporation came into existence on 29th September 1688.

(ii) In 1726, the municipal corporations were set up in Bombay and Calcutta.

(iii) Lord Mayo's Resolution of 1870 on financial decentralisation visualised the development of local self-government institutions.

(iv) Lord Ripon's Resolution of 1882 has been hailed as the 'Magna Carta' of local self-government. He is called the father of local-self government in India.

(v) The Royal Commission on decentralisation was appointed in 1907 and it submitted its report in 1909. Its chairman was C.E.H. Hobhouse.

(vi) Under the dyarchical scheme introduced in Provinces by the Government of India Act of 1919, local self-government became a transferred subject under the charge of a responsible Indian minister.

(vii) In 1924, the Cantonments Act was passed by the Central legislature.

(viii) Under the provincial autonomy scheme introduced by the Government of India Act of 1935, local self-government was declared a provincial subject.